

Court No. - 4

Case :- WRIT - C No. - 36090 of 2019

Petitioner :- Gaya Prasad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Deepak Kumar Pandey, Kamal Kumar Kesharwani

Counsel for Respondent :- C.S.C.

Hon'ble Bala Krishna Narayana, J.

Hon'ble Vivek Varma, J.a

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, Mr Mahboob Ahmad, Advocate for the respondents no. 2 & 3 and perused the record.

This writ petition has been filed by the petitioner with the following reliefs:-

(a) Issue, a writ, order or direction in the nature of certiorari after calling the record of the case and to quash the impugned recovery citation dated 22.8.2019 issued by respondent no. 4 (which is annexed as Annexure No. 3 to this writ petition).

(b) Issue an ad interim mandamus directing the respondents to issue correct electricity bill to the petitioner after adjustment of paid amount in easy installment.

(c) Issue an ad interim mandamus directing the respondents to not to take any coercive action against the petitioner for realizing recovery amount during the pendency of the present writ petition.

(d) Issue any other writ, order or direction in favour of the petitioner as this Hon'ble Court may deem fit and proper in the present facts and circumstances of the case, so as to secure the ends of justice or else the petitioners shall suffer irreparably.

(d) Award the costs of petition to the petitioners.

Sri Mahboob Ahmad, learned counsel appearing for the respondents no. 2 & 3, at the first instance, has raised preliminary objection with regard to maintainability of the writ petition on the ground that the dispute which the petitioner is raising by means of this writ petition primarily concerns the accuracy of certain bills raised by the respondents and for redressal of the same, petitioner has got statutory alternative remedy under Clause 6.5(b) of the UP Electricity Supply Code, 2005.

In rebuttal to the said argument, learned counsel for the petitioner has submitted that since the recovery certificate for recovery of the amount payable under the impugned recovery citation has already been issued and in case, petitioner avails the remedy available to him, and by the time the amount is recovered, in that situation the petitioner shall be left remediless. It is further submitted that liberty be given to petitioner to move an application before the respondent no. 3 i.e.

Executive Engineer ventilating all his grievance therein.

It is further submitted that the petitioner has already moved an application dated 29.8.2019 before the respondent no. 3 raising all the grievances which have been taken by him in this writ petition, but the said application has yet not been decided by him. A copy of the said application dated 29.8.2019 has been brought on record as Annexure no. 7 to the writ petition.

Lastly, it is submitted that a writ of mandamus be issued to the respondent no. 3 i.e. Executive Engineer, Electricity Distribution Division Chail, District Kaushambi to decide the application dated 29.8.2019 (Annexure No. 7) filed by the petitioner before him within a specified period and till the application is decided the recovery proceedings initiated against the petitioner may be kept in abeyance.

Having considered the matter in all its ramifications, we are of the considered view that instead of interfering in this matter at this stage, needs of justice will be served in case this writ petition is finally disposed of with direction to the respondent no. 3 i.e. Executive Engineer to decide the application filed by the petitioner before him within a time bound period.

In view of above, but without prejudice to the merits of the case, this writ petition is finally **disposed off** with direction to the respondent no. 3 i.e. Executive Engineer, Electricity Distribution Division Chail, District Kaushambi to pass appropriate order on the application of the petitioner dated 29.8.2019 (Annexure No.-7) pending before him, after affording an opportunity of hearing to the petitioner as expeditiously as possible preferably within a period of four weeks from the date of filing of a certified copy of this order by the petitioner before him.

For a period of four weeks from today or till the respondent no. 3 decides the application of the petitioner, whichever is earlier, the recovery proceedings, initiated against the petitioner, pursuant to the impugned recovery citation dated 22.8.2019, shall remain in abeyance.

It is further made clear that in case the petitioner fails to file the certified copy of this order before the respondent no. 3 within a week, the writ petition shall stand dismissed without reference to the court and the petitioner shall not be entitled to any benefit of this order.

Order Date :- 11.11.2019
RavindraKSingh